

HOUSE No. 1731

The Commonwealth of Massachusetts

PRESENTED BY:

Kenneth I. Gordon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the victim of violent crime compensation law.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth I. Gordon</i>	<i>21st Middlesex</i>	<i>1/10/2025</i>

HOUSE No. 1731

By Representative Gordon of Bedford, a petition (accompanied by bill, House, No. 1731) of Kenneth I. Gordon for legislation to provide certain persons who were abused as a child with compensation from the Division of Victim Compensation and Assistance within the Department of the Attorney General. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the victim of violent crime compensation law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 258C of the General Laws, as most recently amended by Section
2 109 of Chapter 256 of the Acts of 2010, is hereby amended by inserting after the second sentence
3 in section 2 (b), the following sentence:

4 In the case of a claimant who was sexually abused as a minor, such good cause shall
5 include the report of a duly licensed mental health professional stating an opinion that the
6 claimant did not make the connection between the sexual abuse and the harm suffered by the
7 claimant at the time the abuse occurred, and that claimant's failure to make the connection was
8 consistent with the typical responses by such victims of childhood sexual abuse.

9 SECTION 2. Chapter 258C of the General Laws, as most recently amended by Section
10 127 of Chapter 176 of the Acts of 2008, is hereby amended by inserting after section 5 (a) (1) the
11 following:

12 In the case of a claimant who was sexually abused as a minor, said three years shall
13 commence to run when the claimant first makes the connection between the sexual abuse and the
14 harm suffered by the claimant as a result. The report of a duly licensed mental health
15 professional stating an opinion as to the date when the claimant first made the connection
16 between the sexual abuse and the harm suffered by the claimant, and that the claimant's failure to
17 make the connection prior to that date was consistent with the typical responses by such victims
18 of childhood sexual abuse, shall be prima facie evidence in all proceedings under this chapter.